

**CHAPTER xvi.**

An Act to authorise the Luton Water Company to acquire additional land by agreement for the general purposes of their undertaking to raise further capital and for other purposes. A.D. 1911.  
[2nd June 1911.]

**W**HEREAS by the Luton Water Act 1865 (in this Act called “the Act of 1865”) the Luton Water Company (in this Act called “the Company”) were incorporated and authorised to supply water to the parish of Luton including the borough of Luton and the hamlets or villages of Stopsley East Hyde West Hyde Leagrave Limbury and Biscot all in the county of Bedford and the capital of the Company was by that Act fixed at twenty thousand pounds in shares and five thousand pounds in borrowed money:

And whereas the Company were entitled in respect of so much of the said share capital of twenty thousand pounds as was actually paid up to pay a dividend not exceeding the rate of ten pounds per centum per annum:

And whereas by the Luton Water Order 1880 confirmed by the Gas and Water Orders Confirmation Act 1880 (in this Act called “the Order of 1880”) the Company were authorised to raise by the issue of new ordinary or preference shares additional capital not exceeding in the whole thirty thousand pounds restricted to the payment of a maximum dividend of seven pounds in respect of every one hundred pounds actually paid up of such capital as might be issued as ordinary capital or six pounds in respect of every one hundred pounds actually paid up of such capital as might be issued as preference capital and were by the said Order authorised to borrow in respect of the said additional capital any sums not exceeding in the whole seven thousand five hundred pounds:



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And whereas by the Luton Water Act 1897 (in this Act called "the Act of 1897") the share capital authorised to be raised under the Act of 1865 and the Order of 1880 were consolidated in the manner provided by that Act and converted into capital stock called "consolidated ordinary stock" bearing a maximum rate of dividend of four per centum and by the same Act the Company were empowered to increase their capital by forty thousand pounds and to borrow ten thousand pounds:

And whereas the amount of capital authorised to be raised and issued by the Company under the authority of the Act of 1865 the Order of 1880 and the Act of 1897 including powers of borrowing is as follows:—

## ACT OF 1865.

|                                   |   |   |                |
|-----------------------------------|---|---|----------------|
| In ordinary shares of £5 each -   | - | - | £20,000        |
| By borrowing on mortgage -        | - | - | 5,000          |
| Total authorised by Act of 1865 - |   |   | <u>£25,000</u> |

## ORDER OF 1880.

|                                               |   |   |                |
|-----------------------------------------------|---|---|----------------|
| In ordinary or preference shares of £5 each - | - | - | £30,000        |
| By borrowing on mortgage -                    | - | - | 7,500          |
| Total authorised by Order of 1880 -           |   |   | <u>£37,500</u> |

## ACT OF 1897.

|                                                                                                                |   |   |          |
|----------------------------------------------------------------------------------------------------------------|---|---|----------|
| Share capital under Act of 1865 and Order of 1880 converted into four per centum consolidated ordinary stock - | - | - | £102,500 |
| Additional amount of consolidated stock -                                                                      | - | - | 40,000   |

Total capital converted and raised under Act of 1897 - £142,500 :

And whereas the Company were authorised to borrow on mortgage or by the issue of debenture stock under the Act of 1865 the Order of 1880 and the Act of 1897 twenty-two thousand five hundred pounds made up as follows:—

## ACT OF 1865.

|                                    |   |   |        |
|------------------------------------|---|---|--------|
| Amount authorised to be borrowed - | - | - | £5,000 |
|------------------------------------|---|---|--------|

## ORDER OF 1880.

|                                                          |   |   |        |
|----------------------------------------------------------|---|---|--------|
| Amount authorised to be borrowed on additional capital - | - | - | £7,500 |
|----------------------------------------------------------|---|---|--------|



ACT OF 1897.

A.D. 1911.

Amount authorised to be borrowed on additional amount of consolidated stock - - £10,000

Total amount of borrowing powers - £22,500 :

And whereas the Company have raised and expended the whole of the share capital authorised to be raised by the Act of 1865 and the Order of 1880 and also the whole of the consolidated stock authorised to be created under the Act of 1897 and have borrowed under the said Acts and Order the sum of fourteen thousand six hundred and sixty-seven pounds :

And whereas the population in the Company's district of supply has largely increased and is still increasing and in order to enable the Company to supply the water necessarily required for such increased and increasing population and to comply with their statutory obligations it is expedient that subject to the provisions of this Act the Company be empowered to raise the further amount of consolidated stock by this Act provided such stock ranking *pari passu* with the consolidated stock created and issued under the authority of the Act of 1897 for the construction of an additional service reservoir engines machinery and plant as well as for the extension of water mains and pipes to meet the increased demands of the district and also to borrow in respect of the said further amount of stock :

And whereas it is expedient that further powers as in this Act provided should be conferred upon the Company :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the Luton Water Act 1911. Short title.

2. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act (namely) :— Incorporation of general Acts.

(1) The Waterworks Clauses Acts 1847 and 1863 except the words "with the consent in writing of the owner or



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reputed owner of any such house or of the agent of such owner" in section 44 of the Waterworks Clauses Act 1847:

(2) The Lands Clauses Acts:

(3) The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (namely):—

The consolidation of the shares into stock;

The borrowing of money by the Company on mortgage or bond;

The making of dividends;

The giving of notices; and

The provision to be made for affording access to the special Act by all parties interested:

And Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts.

Interpreta-  
tion.

3. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act—

"Existing capital" means the paid-up capital of the Company as set out in the preamble to this Act;

"Additional capital" means the consolidated ordinary stock authorised to be raised by this Act.

Acquisition  
of lands by  
agreement.

4. In addition to any other lands which the Company are for the time being authorised to acquire hold or use the Company may by agreement purchase or take leases of and hold for the purposes of this Act and for the general purposes of the undertaking any lands not exceeding in the whole six acres in extent or any easement (not being an easement of water in which persons other than the grantors have an interest) in over or under any such lands but the Company shall not upon any such lands create or permit any nuisance and no buildings shall be erected on such lands except such as are required for or are connected with the purposes of the undertaking.

Persons  
under dis-  
ability may  
grant ease-  
ments &c.

5. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company



any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

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6. The Company may demise and lease for any terms not exceeding twenty-one years and also either before or after making any demise and lease thereof absolutely sell and dispose of to such persons and in such manner as the Company think fit any lands and property for the time being belonging to the Company which they do not require for the purposes of their undertaking (subject nevertheless to the provisions of the Lands Clauses Consolidation Act 1845 with respect to the sale of superfluous lands so far as such provisions are in each case applicable) and on the lease or sale by the Company of any such lands and property they may reserve to themselves all or any part of the water or water rights or other easements belonging thereto and may make the lease or sale subject to such reservations accordingly and may also make any such lease or sale subject to such other reservations special conditions restrictions and provisions with respect to use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter as they think fit.

Company may lease spare lands of undertaking.

7. The Company shall not construct any works for taking or intercepting water from any lands acquired by them under this Act unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament.

Limiting powers of Company to abstract water.

8. Notwithstanding anything in this or any Act of Parliament or Provisional Order confirmed by Parliament relating or made applicable to the Company or their undertaking the Company shall not without the consent of the Hertfordshire County Council sink any well or bore or construct any works for the taking or intercepting of water in the parishes of East Hyde and West Hyde respectively as those parishes exist at the passing of this Act.

For protection of Hertfordshire County Council.

9. Subject to the provisions of the Waterworks Clauses Act 1847 the Company may for the purpose of preventing and detecting waste affix and maintain meters and stopcocks and

Detection of waste.



A.D. 1911. similar apparatus on the service pipes and mains of the Company and in the pipes supplying houses with water and may insert in the roads or footways the necessary covers of boxes for giving access and protection thereto and may for that purpose break up and interfere temporarily with public and private streets roads lanes footways courts passages tramways gas or water pipes electric lines wires and apparatus:

Provided that the Company shall not break up or interfere with any electric lines wires or apparatus of the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

Power to  
lay pipes in  
streets not  
dedicated to  
public use.

**10.** The Company may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out but not dedicated to public use supply such premises with water and for that purpose the Waterworks Clauses Acts 1847 and 1863 shall apply as if the street were a street within the meaning of those Acts.

For pro-  
tection of  
Midland  
Railway  
Company.

**11.** Any mains pipes or other works which the Company may under the powers of this Act lay down or execute under or over or which may affect any railway roadways or works of the Midland Railway Company shall be laid down and executed and subsequently maintained by the Company under the direction and superintendence and to the reasonable satisfaction of the chief engineer of the Midland Railway Company and in accordance with plans and sections previously submitted to and approved by him and the Company shall make the Midland Railway Company full compensation for all damage sustained by them by reason of the exercise of the powers of this Act.

If any difference shall arise between the Company and the Midland Railway Company under this section such difference shall be settled by an engineer to be appointed by the president for the time being of the Institution of Civil Engineers at the request of either party.

For pro-  
tection of  
Great  
Northern  
Railway  
Company.

**12.** Any mains pipes or other works which the Company may under the powers of the sections of this Act the marginal notes whereof are "Detection of waste" and "Power to lay pipes in streets not dedicated to public use" lay down or execute under or over or which may affect any railway or works of the Great Northern Railway Company shall be laid down and executed and subsequently maintained by the Company under the direction and superintendence and to the reasonable satisfaction of the



chief engineer of the Great Northern Railway Company and in accordance with plans and sections previously submitted to and approved by him and the Company shall make the Great Northern Railway Company full compensation for all damage sustained by them by reason of the exercise of the powers of the said sections. A.D. 1911.

If any difference shall arise between the Company and the Great Northern Railway Company under this section such difference shall be settled by an engineer to be appointed by the president for the time being of the Institution of Civil Engineers at the request of either party.

**13.** In addition to the capital already authorised to be raised by the Company they may subject to the provisions of Part II. of the Companies Clauses Act 1863 raise any further sums not exceeding in the whole one hundred thousand pounds by the creation and issue of a further amount of consolidated ordinary stock bearing the same amount of dividend and ranking *pari passu* with the consolidated ordinary stock created and issued under the authority of the Act of 1897 but the Company shall not issue any such stock under the authority of this Act nor shall any stock issued under the authority of this Act vest in the person accepting the same unless and until the full price of such stock including any premium obtained upon the sale thereof as hereinafter provided shall have been paid in respect thereof. Provided that it shall not be lawful for the Company to create and issue under the powers of this Act any greater nominal amount of capital than shall be sufficient to produce including any premium which may be obtained on the sale thereof the sum of one hundred thousand pounds. Power to raise additional capital.

**14.** Except as is by this Act otherwise provided the additional capital to be raised by the Company under this Act by the creation of new stock shall be considered as part of the general capital of the Company and so much of the additional capital as shall be raised by consolidated ordinary stock shall confer the like rights of voting and qualification as the existing consolidated ordinary stock of the Company and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if the additional capital were part of the existing capital of the Company of the same description and the new stock were stock in that capital. The capital in new stock so created shall form part of the capital of the Company New stock to be considered part of general capital.



A.D. 1911. — and all stock created under this Act shall be transferable and transmissible as and generally subject to the like provisions as the existing stock of the Company.

Dividends on  
new stock.

**15.** Every person who becomes entitled to new stock shall in respect of the same be a holder of stock in the Company and shall be entitled to a dividend with the other holders of stock of the same class or description proportioned to the whole amount from time to time called up and paid on the whole amount of such stock.

New stock  
to be sold by  
auction or  
tender.

**16.—(1)** All stock created under the powers of this Act shall be issued in accordance with the provisions of this section.

**(2)** All stock so to be issued shall be offered for sale by public auction or tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine. Provided as follows:—

**(A)** Notice of the intended sale shall be given in writing to the town clerk of Luton and to the secretary of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the borough of Luton:

**(B)** A reserve price shall be fixed and notice thereof shall be sent by the Company in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be:

**(C)** No lot offered for sale shall comprise stock of greater nominal value than one hundred pounds:

**(D)** In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum. In the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid:

**(E)** It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Company within three months after the date of the auction or of the acceptance of the tender as the case may be.



(3) Any stock which has been so offered for sale and is not sold may be offered at the reserve price to the holders of consolidated ordinary stock of the Company in accordance with the provisions of sections 18 19 and 20 of the Companies Clauses Act 1863 and to the employees of the Company and to the consumers of water supplied by the Company in such proportions as the Company may think fit or to one or more of these classes of persons only. Provided in the case of an offer to holders of stock that if the aggregate amount of stock applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

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(4) Any stock which has been offered for sale in accordance with subsection (2) or with subsections (2) and (3) and is not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this section and any such stock then remaining unsold may be otherwise disposed of at such price and in such manner as the directors may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Company shall send a report thereof to the Board of Trade stating the total amount of the stock sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the stock.

**17.** All moneys raised under this Act including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of stock under the provisions of this Act shall not be considered as part of the capital of the Company entitled to dividend.

Application  
of moneys.

**18.** The Company may subject to the provisions of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one-third part of the amount of the additional capital which at the time of borrowing has been raised under the powers of this Act. But no sum shall be borrowed in respect of any capital so raised until the Company have proved to a justice of the peace before he gives his certificate under the fortieth section of the Companies Clauses Consolidation Act 1845 that the whole of the stock at the time

Power to  
borrow.



A.D. 1911. — issued together with the premium (if any) realised on the sale thereof has been fully paid up.

Company  
not to con-  
vert bor-  
rowed money  
into capital.

**19.** Notwithstanding anything contained in the Act of 1865 or the Act of 1897 the Company shall not exercise in respect of any money borrowed by them the powers of the Companies Clauses Consolidation Act 1845 with respect to the conversion of borrowed money into capital.

For appoint-  
ment of re-  
ceiver.

**20.** Section 15 of the Order of 1880 and section 18 of the Act of 1897 are hereby repealed but without prejudice to any appointment heretofore made or to any proceedings pending at the commencement of this Act and in lieu thereof the mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five thousand five hundred pounds in the whole.

Debenture  
stock.

**21.** The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 and of section 10 of the Order of 1880 and section 20 of the Act of 1897.

Limit of  
interest on  
money bor-  
rowed.

**22.** The Company shall not without the consent of the Board of Trade pay interest at a higher rate than four pounds per centum per annum in respect of any moneys borrowed on mortgage or raised by the creation and issue of debenture stock under the authority of this Act.

Receipt in  
case of per-  
sons not sui  
juris.

**23.** If any money is payable to a shareholder or mortgagee or debenture stockholder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Existing  
mortgages  
to have  
priority.

**24.** All mortgages granted by the Company in pursuance of the powers of any Act of Parliament or Provisional Order before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages and subject to the provisions of the Acts or Order under which such mortgages were respectively granted have priority over any mortgages granted by virtue of this Act but nothing in



this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company. A.D. 1911. —

**25.** So much of section 15 of the Act of 1865 as relates to the qualification of a director is hereby repealed and from and after the passing of this Act the qualification of a director shall be the possession in his own right of not less than three hundred and twelve pounds ten shillings consolidated ordinary stock in the capital of the Company. As to qualification of a director of Company.

**26.** Proceedings for the recovery of any demand made under the authority of this Act or the former Acts and Order or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court having otherwise jurisdiction in the matter provided that the demand does not exceed the amount recoverable in that court in a personal action. Recovery of demands.

**27.** All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company. Costs of Act.

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